

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE BUYER, LLC

v.

COSCO SHIPPING LINES Co., LTD.

RESPONDENT’S STATEMENT OF UNDISPUTED MATERIAL FACTS

Respondent COSCO Shipping Lines Co., Ltd. (“Respondent” or “COSCO”) respectfully submits this *Statement of Undisputed Material Facts* in support of its concurrently filed Motion for Partial Summary Judgment.

1. On October 17, 2024, Complainant filed and served a Second Amended Verified Complaint (“Complaint”) against Respondent, alleging violations of the Shipping Act. Complaint ¶11.
2. The Complaint seeks reparations with respect to certain shipments transported by COSCO and allegedly destined to TZ SSE Buyer, LLC (f/k/a Impact Products, LLC and Safety Zone, LLC)(“TZ SSE” or “Complainant”).Complaint ¶¶4, 14, 36.
3. The Complaint alleges, “COSCO assessed Supply Source with demurrage on 244 containers, detention charges on 15 containers, per diem charges or [sic] 73 containers, and yard storage charges on 312 containers. The total demurrage, detention, per diem, and yard storages charges total \$1,656,492.00.” Complaint ¶14.

4. Complainant has prepared and produced to Respondent, “a table which includes information on each container number for the charges [allegedly] wrongfully assessed by COSCO, as referenced in the Complaint.” Complainant’s Response to Respondent’s Interrogatory No. 6. A copy of this table is attached hereto as **EXHIBIT 1** [highlighted for ease of reference]).
5. The second line entry on the table refers to a shipment designated as Reference Number: L01-149384.
6. **EXHIBIT 2** (Bates No. COSCO_0000566-COSCO_0000567)) is an email from Complainant’s NVOCC (Laufer) to Complainant forwarding an Arrival Notice from COSCO for the shipment described in Paragraph 5 (Reference Number: L01-149384). This Arrival Notice demonstrates that the shipment (Reference Number: L01-149384) moved through a Canadian port, specifically, Prince Rupert, Canada. Information in this email shows:
 - a. L01-149384
 - b. COSCO Arrival Notice
 - c. Bill of Lading Information
 - i. Bill of Lading Number: COSU6340048900
 - ii. Container Number: OOCU8178237
 - iii. Vessel Voyage: XIN YING KOU 217E
 - iv. Place of Receipt (POR): Xingang, Tianjin, Tianjin, China
 - v. Place of Loading (POL): Xingang
 - vi. Place of Discharge (POD): Prince Rupert
 - vii. Final Destination Hub (FND): Chicago, Cook, Illinois, United States

viii. E/ATA at POD: 17 Sep 2022 (Sat), 1921

ix. Request Reference: 538SFII-de586274-07bf-ee1-8182-

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7. **EXHIBIT 3** shows that other shipments covered by the Complaint were also transported by sea from a foreign country to a port in Canada and did not involve any U.S. port.

	Fact	Source(s)
1	Shipments for which Complainant seeks reparations moved via Canadian ports.	Exhibit 1 - Complainant's Responses and Objections to Respondent's First Set of Discovery Requests, including Complainant's "Exhibit A" (table of charges Complainant alleges wrongfully charged by Respondent indicating, Reference Number, carrier name, SCAC, container numbers, house bill of lading number, master bill of lading number, demurrage amount, detention amount, per diem amount, yard storage amount, and total charges)(served July 29, 2024)(unverified)[highlights added in table for ease of reference].
2	Container OOCU8178237 originated from Tianjin (CHINA) to Prince Rupert (CANADA)	Exhibit 2 – COSCO_0000566-COSCO_0000567 (Email from Natalya Girshman [Natalya@laufer.com] to Safety Zone Imports dated September 27, 2022, subject "p/u# for LO1-149384 Chicago, IL, attachments BL6340048900.PDF), forwarding COSCO Arrival Intermodal (In-Transit & BL Number: COSU6340048900, showing container number OOCU8178237, bill of lading information Place of receipt Xingang, Tianjin, Tianjin, China, Place of Discharge Prince Rupert. [highlights added for ease of reference]
3	Shipments that Complainant asserts Respondent charged to	Exhibit 3 – Correspondence, Arrival Notices, Invoices, Customs Entry Declarations, all Bates-numbered as follows:

	Complainant the charges alleged in the Complaint moved from a foreign country to a port in Canada, with no involvement of carriage by sea to or from a United States port.	COSCO_0002261 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0002926 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0000263 (Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0000265 (Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0001668 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0001816 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0001820 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0002110 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0001417 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0004702(Arrival Notice showing Place of Discharge Vancouver); COSCO_0000183(Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0000260 (Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0000269 (Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0004548 (Arrival Notice showing Port of Discharge Prince Rupert); COSCO_0004549 (Arrival Notice showing Port of Discharge, Prince Rupert, Canada); COSCO_0006463 (Arrival Notice showing Place of Discharge Vancouver); COSCO_0000198 (Arrival Notice showing Port of Discharge Prince Rupert, Canada);
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		COSCO_0000199 (Arrival Notice showing Port of Discharge, Prince Rupert, Canada); COSCO_0000267 (COSCO Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0000172 (COSCO Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0004111 (COSCO Arrival Notice showing Place of Discharge Vancouver); COSCO_0004115 (COSCO Arrival Notice showing Place of Discharge Vancouver); COSCO_0000174 (COSCO Arrival Notice showing Place of Discharge Prince Rupert); COSCO_0000180 (COSCO Arrival Notice showing Place of Discharge Prince Rupert).
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Dated: March 11, 2025

Respectfully submitted,

Rebecca A. Fenneman

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